

EU: no registration or prior authorisation of water abstraction

The Commission's summary of its letter to Malta, tested against Maltese law as published

THE CLAIM

“Malta has failed to put in place ... a prior authorisation regime to control the abstraction ...”

European Commission, July infringements package (INF/26/1376), 8 July 2026

Summary of its letter of formal notice to Malta, INFR(2026)2115 (the letter is not published).

The same text cites surface-water registration (rated) and periodic review of controls (not rated).

VERDICT

LARGELY SUPPORTED

*Facts match Maltese law;
legal sufficiency not rated*

SUPPORTED

LARGELY
SUPPORTED

NOT
SUBSTANTIATED

MISLEADING

CONTRADICTED

MAIN RESULTS

Art. 11(3)(e)

What the EU requires

Registers of abstraction, prior authorisation and periodic review. Abstractions with no significant impact may be exempted.

2008

Registered; no permit found

Groundwater sources had to be notified by Nov 2008. The law says notification gives no right to draw water.

Proposed

Permits still a plan

A 2023 Green Paper proposes ERA abstraction permits; in 2025 Malta said the framework was “close to being finalised”. None found in force.

3.4 km

Little surface water

Three short watercourses and two pools. We found no rule to register surface-water abstraction.

Review?

Not rated: a legal point

The law repeats the Directive's duty to review; the rules for notified sources set no term or review.

FAIR TO SAY

Malta reports that no new sources have been authorised since 2010 apart from sea-wells; drilling is under a moratorium with exceptions. In 2019 Commission staff wrote of “a concession, authorisation and/or permitting regime”.

WHAT WOULD SETTLE IT

☐ The letter of formal notice and Malta's reply.

☐ The draft abstraction regulation (Measure 053) and its timetable.

☐ ERA's current count of registered, metered and reporting sources.

☐ What Malta reports to Eurostat as surface-water abstraction.